25AVCV01014 25AVCV01014

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 25AVCV01014 Hearing Date: August 6, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

JOSE OSWALDO VALDEZ,

Plaintiff,

v.

SPINOSO REAL ESTATE GROUP DLS, LLC; SPINOSO MANAGEMENT GROUP, LLC; BRIDGE GROUP INVESTMENTS II LLC; BRIDGE GROUP INVESTMENTS, LLC; ANTELOPE VALLEY MALL, LLC; and DOES 1 through 100,

Defendants.

Case Number 25AVCV01014

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 6, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a negligence and premises liability case arising from Plaintiff Jose Oswaldo Valdez's (Plaintiff) fall from a roof during the scope of his employment.

On August 13, 2025, Plaintiff filed a complaint against Spinoso Real Estate Group DLS, LLC (Spinoso), Spinoso Management Group, LLC (Spinoso Management), Bridge Group Investments II, LLC (Bridge II), Bridge Group Investments, LLC (Bridge), and Antelope Valley Mall, LLC (AVM) (collectively Defendants), asserting three causes of action for (1) general negligence, (2) premises liability, and (3) negligent undertaking.

Specifically, Plaintiff alleges that he was injured on May 17, 2024 at 1233 Rancho Vista Boulevard, Palmdale, CA 93551, known as the Antelope Valley Mall (the Property), when he fell due to failures, disrepair, and damage in a roof access door on the Property, which gave way and broke. (Compl., ¶ 11.)

On December 4, 2025, Spinoso and Spinoso Management filed a joint answer.

On December 10, 2025, Spinoso and Spinoso Management filed a cross-complaint against ROEs 1 through 50, asserting causes of action for equitable and express indemnity.

On February 25, 2026, default was entered against Defendants Bridge, Bridge II, and AVM.

On February 27, 2026, Defendants Bridge, Bridge II, and Antelope Valley Shops, LLC (AVS) filed a cross-complaint against Happy Hours Bar & Grill, Inc. (Happy Hours), EPI Concepts Construction, Inc. (EPI), Brock, and ROEs 1 through 100, asserting causes of action for (1) total indemnity, (2) equitable indemnity, (3) express indemnity, (4) breach of contract, (5) breach of contract – defense), (6) declaratory relief, (7) breach of implied warranty, (8) negligence, and (9) contribution.

On March 16, 2026, Plaintiff filed two amendments to the complaint, substituting Happy Hours as Doe 1 and EPI as Doe 2.

That same date, Bridge, Bridge II, and AVS filed a stipulation with Plaintiff to set aside the default of all three Defendants, which was granted. Notably, AVS contends that it was erroneously sued as AVM. (Stipulation to Set Aside Default Dated 3/16/26, p. 1:24-25.)

On April 1, 2026, Spinoso and Spinoso Management filed an amendment to the cross-complaint, naming AVS as Roe 1.

On July 16, 2026, AVM filed the present motion to vacate default entered against it.

On July 30, 2026, the Court granted Security's motion for leave to intervene and file a first amended complaint in intervention.

AVM's present motion to set aside default is unopposed.

II. Legal Standard

Standard for Motion to Set Aside Default – Per Code of Civil Procedure section 473(b), a court “may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.”

The general underlying purpose of Code of Civil Procedure section 473, subdivision (b) is to promote the determination of actions on their merits. (Even Zohar Const. & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 839.) However, the court only has broad discretion to vacate the entry of default, default judgment, or a dismissal where the moving party timely establishes a proper ground for relief. (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 495.) The moving party bears the burden of establishing that the default was the result of excusable neglect. (Marcotte v. Municipal Court (1976) 64 Cal.App.3d 235, 239.)

The party must seek such relief “within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).)

III. Discussion

Application – AVM moves to set aside default pursuant to Code of Civil procedure section 473, subdivision (b) on the grounds that its failure to answer was the result of excusable neglect and that AVM has a meritorious defense to all claims alleged in Plaintiff’s complaint. (Motion, p. 2:8-11.)

Specifically, AVM asserts that it sold the Property on November 29, 2022 to AVS and that AVM had no ownership, control, maintenance, management, or operational responsibility for the Property at the time of the incident. (Motion, p. 3:6-11.) As to excusable neglect, AVM asserts that AVM is part of the QIC group of entities, and that Joan Glenn-Katzakis, who at the time of service of process was the Executive Vice President of Counsel at QIC, diligently attempted to resolve the matter without need for formal litigation from November 2025 through February 2026, including contacting Plaintiff’s counsel directly, Spinoso, Spinoso’s insurer, Liberty Mutual, and AVS’s insurer, Colony Insurance Company. (Motion, p. 3:12-15, 4:17-28, 5:9; Heming Decl., ¶¶ 5-8, Exs. B, C.) However, amidst these efforts to resolve the matter with Plaintiff’s counsel directly, Glenn-Katzakis left the company before resolution of the matter, and amidst the transition, AVM inadvertently did not timely file an answer in this action. (Motion, p. 3:17-19.)

AVM also asserts that after Glenn-Katzakis’s departure from QIC and after default was entered on February 25, 2026, AVM’s counsel continued to attempt to contact Plaintiff’s counsel via telephone on at least seven or eight separate occasions but was never able to get ahold of counsel to discuss. (Motion, p. 5:14-18; Glazer Decl., ¶¶ 2-3.) On July 2, 2026, counsel sent an email with all relevant information regarding AVM’s asserted non-liability for the subject incident and sent the grant deed to Plaintiff’s counsel, but Plaintiff’s counsel failed to provide any affirmative response regarding dismissing AVM from the case. (Motion, p. 5:20-6:1; Glazer Decl., ¶ 5, Ex. B.)

Here, the Court finds that there is good cause to set aside entry of default and finds no prejudice to Plaintiff or the other Defendants in doing so. The Court notes that AVM relies on the incorrect standard for discretionary relief in its moving papers, as it cites to the standard for equitable relief from default judgment based on extrinsic mistake or fraud, not mere entry of default for excusable delay. Therefore, AVM need not establish a meritorious defense to the action. (See Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981-82; see also Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 503.) Code of Civil Procedure section 473, subdivision (b), under which AVM moves for relief, expressly states that “[n]o affidavit or declaration of merits shall be required of the moving party.”

The Court finds that AVM has timely filed the motion for relief within six months of entry of default and has established that the failure to timely answer was due to excusable neglect, in that lead counsel who was in the process of attempting to resolve the matter departed from QIC, and that after default was entered, AVM’s counsel continued to contact multiple insurers, Defendants, and Plaintiff’s counsel directly in an effort to resolve the matter out of court, to which Plaintiff’s counsel seemingly did not reply. Further, the Court does not find prejudice to Plaintiff or any Defendants, as this case is not set for trial until October of 2027, and the case is still in the early stages, with a cross-complaint being filed as recently as July 16, 2026 and a new party added as recently as July 31, 2026. Furthermore, the motion is unopposed.

Therefore, AVM’s motion to set aside entry of default is GRANTED. AVM shall filed its answer within 10 days of this Order.

IV. Conclusion

Defendant Antelope Valley Mall’s Motion to Set Aside Default is GRANTED.